

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kevin Kabadi	Team: Squad #02	CCRB Case #: 202305076	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 06/01/2023 8:30 PM	Location of Incident: East 132nd Street and Madison Avenue	18 Mo. SOL 12/1/2024	Precinct: 25		
Date/Time CV Reported Tue, 06/06/2023 3:03 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/06/2023 3:03 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Amela Dzihic	31626	965064	PSA 5

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Steven Grice	17934	961796	PSA 5
2. SGT Kenneth Bryant	05129	950119	PSA 5
3. DTS Anthony Baresi	03675	951522	PSA 5
4. PO John Peloso	18172	968704	PSA 5
5. PO Jhan Taveras	07219	969387	PSA 5

Officer(s)	Allegation	Investigator Recommendation
A . PO Amela Dzihic	Off. Language: Police Officer Amela Dzihic made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	A . Substantiated
B . PO Amela Dzihic	Discourtesy: Police Officer Amela Dzihic spoke discourteously to § 87(2)(b)	B . Substantiated

Case Summary

§ 87(2)(b) filed this case with the CCRB by telephone on June 6, 2023 (BR 01). § 87(2)(b) filed a duplicate complaint with IAB on August 12, 2023, which was received at the CCRB on August 29, 2023 (BR 12).

On June 1, 2023, at approximately 8:30 PM, § 87(2)(b) and Police Officer Amela Dzihic of PSA 5 were both driving on 132nd Street in Manhattan when their vehicles collided. Both of them parked their vehicles and Police Officer Dzihic approached § 87(2)(b). They began arguing over the cause of the vehicle collision and, during this conversation, Police Officer Dzihic referred to § 87(2)(b) as “bitch” (**Allegation A: Offensive Language, substantiated**) (**Allegation B: Discourtesy Word, substantiated**). Police Officer Dzihic issued § 87(2)(b) a summons for reckless driving (BR 13).

Body-worn camera (BWC) footage was received from the BWCs of Police Officer Dzihic, Police Officer Steven Grice, Police Officer John Peloso, Police Officer Jhan Taveras, Sergeant Kenneth Bryant, and Detective Anthony Baresi (BR 02). The summaries of the body worn camera are in LA#40 (BR 03).

Findings and Recommendations

Allegation (A) Offensive Language: Police Officer Dzihic made remarks to § 87(2)(b) based upon the gender of § 87(2)(b).

Allegation (B) Discourtesy: Police Officer Dzihic spoke discourteously to § 87(2)(b).

§ 87(2)(b) was interviewed by the CCRB on June 20, 2023 (BR 04). Police Officer Dzihic was interviewed by the CCRB on August 22, 2023 (BR 05).

It is undisputed that there was a vehicle collision between § 87(2)(b) vehicle and Police Officer Dzihic’s police vehicle. Police Officer Dzihic approached § 87(2)(b) vehicle and used the word “bitch” while speaking to § 87(2)(b).

§ 87(2)(b) stated that as Police Officer Dzihic was walking toward her vehicle, she noticed through her demeanor and facial expressions that she was angry. Police Officer Dzihic came to the passenger side of § 87(2)(b) vehicle and said, “You bitch.”

Police Officer Dzihic’s BWC (BR 06) footage shows § 87(2)(b) at timestamp 1:00, saying to someone on the phone, “A police officer just hit me.” Police Officer Dzihic replies, “No a police officer did not just hit you, you hit me.” § 87(2)(b) replies “I did not hit you ma’am! You were behind me.” Police Officer Dzihic says, “What are you talking about?” as § 87(2)(b) continues yelling, “You hit me!” Police Officer Dzihic then says, “Alright no, we’re not doing this,” and § 87(2)(b) repeats, “Yeah we’re not doing this.” Police Officer Dzihic replies, “I’m in the right – there’s a camera right here,” as § 87(2)(b) continues yelling “You hit me!” At timestamp 1:17 Police Officer Dzihic says, “Bitch, you were coming on the left-hand side.” § 87(2)(b) asks Police Officer Dzihic, “Did you just call me bitch? Did she just call me bitch? Why would you call me bitch? Is that professional to call me a bitch?” Police Officer Dzihic then says, “I need your license and registration, I need your license and registration, I need your license and your registration.” § 87(2)(b) replies “Wait, is that professional of you to call me a bitch?” As § 87(2)(b) is speaking

Police Officer Dzihic says, “We’re not doing this.”

At timestamp 6:23 Police Officer Dzihic approaches Sergeant Bryant and says, “I just wanted her information and she’s being a bitch. She was on the phone saying that I hit her. So, we’re turning right here right and I’m in the right lane and she’s beside me, right? I’m trying to make a turn here and she goes to make a turn, literally right on top of me, from the left lane. Then she’s making calls that I hit her.” Police Officer Dzihic continues, “We literally went to go ask for her information, and she’s on the phone talking about the police officer hit me.”

Police Officer Dzihic testified that as she approached § 87(2)(b) vehicle, she noticed that § 87(2)(b) was on the phone and saying, “A police officer just hit my car.” Since Police Officer Dzihic believed that § 87(2)(b) was lying while she was on the phone, Police Officer Dzihic became frustrated and upset, which prompted her to “blurt” out “Bitch.” Police Officer Dzihic denied saying, “You bitch” or “You’re a bitch,” because she was not directing it toward § 87(2)(b) but rather it was a reaction to what § 87(2)(b) was saying while on the phone. Police Officer Dzihic added that there was no reason for her to use the word “bitch” in this situation and she thought she was saying it under her breath.

Patrol Guide Procedure 200-02 (BR 07) states that officers must perform their duties with “courtesy and civility,” and they must “respect the dignity of each individual” with whom they interact.

While officers are generally prohibited from using profanities toward civilians, they may use profanities “in the context of a dynamic situation over which [they are] attempting to gain control,” but may not do so when it “[serves] no legitimate purpose but to belittle” a civilian. PD v. Pichardo, DAO DCT Case Number 2015-15012 (BR 08).

Administrative Guide 304-06 (BR 11) lists prohibited conduct for members of the service, which includes “using discourteous or disrespectful remarks regarding another person’s... gender.”

Police Officer Dzihic’s BWC footage captures the entirety of the incident and shows that Police Officer Dzihic referred to § 87(2)(b) as “bitch” during the incident, both when speaking directly to her (“Bitch, you were coming on the left-hand side”) and when she was explaining the incident to Sergeant Bryant (“I just wanted her information and she’s being a bitch”).

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be substantiated.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- Police Officer Dzihic has been a member of service for 5 years and has been a subject in 2 CCRB complaints and 4 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

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- § 87(2)(b) declined to mediate this complaint.
- A Notice of Claim search was requested from the Officer of the NYC comptroller on August 29, 2023. The results will be added to the case once received (**BR 09**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 2

Investigator:	<u>Kevin Kabadi</u>	<u>Investigator Kabadi</u>	<u>8/31/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Alexander Opoku-Agyemang</u>	<u>IM Opoku-Agyemang</u>	<u>9/1/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date